

# The U.P. Secondary Education (Removal of Difficulties) (Seventh) Order, 1977

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State of Uttar Pradesh - Act

The U.P. Secondary Education (Removal of Difficulties) (Seventh) Order, 1977

UTTAR PRADESH

India

The U.P. Secondary Education (Removal of Difficulties) (Seventh) Order, 1977

Rule THE-U-P-SECONDARY-EDUCATION-REMOVAL-OF-DIFFICULTIES-SEVENTH-ORDER-1977 of 1977

Published on 16 August 1977

Commenced on 16 August 1977

[This is the version of this document from 16 August 1977.]

[Note: The original publication document is not available and this content could not be verified.]

The U.P. Secondary Education (Removal of Difficulties) (Seventh) Order, 1977

Published Vide Notification No. Ma-3691/15-7-77-2(18)-75 dated 16.8.1977.

Whereas it is necessary to make provision for safeguarding the services of certain teachers;

And, whereas, it is necessary to remove certain difficulties arising in giving effect to the provisions of the Uttar Pradesh Secondary Education Laws Amendment) Act, 1975 (U.P. Act No. 26 of 1975);

Now, therefore, in exercise of the powers conferred by Section 22 of the aforesaid Act and all other powers enabling him in this behalf, the Governor is pleased to make the following Orders :

1.

This Order may be called the Uttar Pradesh Secondary Education (Removal of Difficulties) (Seventh) Order, 1977.

2.

In the Uttar Pradesh Secondary Education (Removal of Difficulties) (Sixth) Order, 1977, after clause 3 the following shall be inserted as clause 4, viz :

"4. Where a teacher of an Institution referred to in sub-clause (d) of clause 3 of the U.P. Secondary Education (Removal of Difficulties) (Fifth) Order, 1976, undergoing training during the educational session 1976-77 under the Scheme of In-service Teachers' Training carried on by the Department of Education, is declared successful after the completion of the training, then for the purpose of eligibility to substantive appointment in the post he shall, notwithstanding anything in preceding clause 3, be deemed to have continued to hold the post of teacher of the Institution till the date of declaration of the result to such training and shall be deemed to be appointed substantively on such post provided no other person has been appointed meanwhile on such post in accordance with the Act and the regulations made thereunder and the date of such substantive appointment shall be the date of the declaration of the result of such training.

Explanation. - Nothing herein shall be construed as entitling any teacher to any pay or allowance for any period for which his services were discontinued."

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